

BEFORE THE
FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

Complainant,

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

Docket No. 21-02

**OBJECTION TO RESPONDENTS’ MOTION FOR LEAVE TO FILE RESPONSE TO
YSN’S REPLY ON MOTION TO COMPEL DOCUMENT REQUESTS**

YSN Imports, Inc. d/b/a Flame King (the “Complainant” or “YSN”), by and through its attorneys Holland & Knight LLP, respectfully submits this objection to Respondents’ Feige “Peggy” Oberlander, U Shippers Group Inc. (the “Association”), U Shippers Group Management Co., Inc. (“Management”) (all three Respondents collectively “Respondents”) motion for leave to file a further response to YSN's Reply on Motion to Compel Document Requests. The Commission's Regulations provide under 46 U.S.C. § 502.150 (4) for Motions to Compel compliance with discovery requests as follows: "(4) A reply to a response is not allowed unless requested by the presiding officer, or upon a showing of extraordinary circumstances." See also 46 U.S.C. §502.71(c). Respondents have not been requested by the Presiding Officer to file a response, and have not even attempted to show any "extraordinary circumstances" warranting a further response to their Motion to Compel. The further response, in any event, improperly seeks to add an unrebutted additional exhibit to the record, and makes a wholly new and confusing argument conflating the third party FASA service contracts (which are subject to the motion to

compel) with production of YSN's service contracts directly with Carriers (all of which have already been produced by YSN.) Respondents' motion should be denied under the Commission's Regulations which preclude further responses or replies absent extraordinary circumstances and Respondents' further response should be rejected by the Presiding Officer.

Dated: December 13, 2021

Respectfully submitted,

By: /s/ J. Michael Cavanaugh

J. Michael Cavanaugh

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